

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Goddard Space Flight Center (GSFC)
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
(JOFOC)
For Space Exploration Network Services and Evolution (SENSE)

1. **Federal Acquisition Regulation (FAR) 6.303-2(b)(1) – Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for other than full and open competition.”**

This document is a justification for other than full and open competition prepared by National Aeronautics and Space Administration (NASA) Goddard Space Flight Center (GSFC) Code 176.1.

The procuring agency is the National Aeronautics and Space Administration (NASA), and the contracting activity is GSFC, Code 176.1.

2. **FAR 6.303-2(b)(2) – The nature and/or description of the action being approved:**

This justification provides the rationale for contracting by other than full and open competition to award a new work extension to the SENSE contract number 80GSFC19C0063 with Peraton Inc. for - one-year until the follow-on competitive contracts Space Exploration Networks Operations, Maintenance and Sustainment (SENOMS) and Space Exploration Networks Capabilities Implementation and Development (SENCID) are awarded. The current effective ordering is from October 1, 2019 through March 31, 2025. The contract extension is necessary to ensure program continuity, critical mission support and avoid significant technical impacts to NASA’s programs such as Space Communications and Navigation (SCaN). The extension will provide additional time needed to complete the competitive process and provide cushion in the event any unforeseen issues are experienced.

3. **FAR 6.303-2(b)(3) – A description of the supplies or services required, to meet the Agency’s needs (including the estimated value):**

The SENSE contract provides support for continuous operations, maintenance, and sustainment of the space-based and ground-based networks and their evolution toward a future architectural vision. Requirements activities include proficient, reliable, and secure day-to-day operations, preventive and corrective maintenance, and sustainment of the current architecture of government-owned assets including the NSN Operations Control Center systems, Space Relay services assets (Tracking and Data Relay Satellites and associated ground systems), and Direct-To-Earth services assets. Performance will be at the following locations: onsite at NASA/GSFC, White Sands Complex, Guam Remote Station, Blossom Point Remote Station, Wallops Ground Station, McMurdo Ground Station, White Sands 1, Kennedy Uplink Station, Ponde de Leon Station, and offsite at the contractor’s facility(ies).

The current maximum ordering value of \$1.8B for the SENSE contract is sufficient to accommodate support of the one-year extension as described in Section 2. The total task orders issued to date value for SENSE is currently \$1.19B and the estimated value of the task orders to be issued during this extension is approximately \$232M which will not increase the current maximum ordering value. Therefore, the extension will not require additional contract ceiling to accommodate the extended period of performance.

4. FAR 6.303-2(b)(4) – An identification of the statutory authority permitting other than full and open competition:

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements.

5. FAR 6.303-2(b)(5) – A demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited:

The rationale supporting the use of 10 U.S.C. 3204(a)(1) is only one responsible source and no other supplies or services will satisfy agency requirements as described below.

The SENSE contract extension ensures program continuity and provides critical mission support for GSFC’s Exploration and Space Communications Division (ESC). GSFC’s ESC Division plays a critical role in nearly every mission that NASA launches, by managing NASA’s operational geostationary communications satellites and ground networks to meet mission communication and navigation needs.

The SENSE contract is responsible for providing the operations and maintenance of government-owned, contractor-operated (GOCO) systems including a constellation of TDRS and associated ground systems that provide Space Relay (SR) and a series of ground stations that provide Direct-To-Earth (DTE) communications and tracking services to customer missions including the International Space Station (ISS) and Moon to Mars missions. ESC networks operate continuously, 24 hours a day, 7 days a week, providing telemetry, tracking, and commanding (TT&C), high-rate data downlink, and radiometric tracking services through a constellation of SR and DTE communications through a global network of NASA and commercial ground stations. The networks are dependent upon complex, integrated multidisciplinary engineering techniques and processes in design, development, fabrication, integration, and testing of ground segments components, assemblies, and systems. The engineering techniques and processes need to be consistent across programs and developed through the accumulation of knowledge and experience.

If NASA GSFC attempts to procure these services from any other source for this interim period, the combination of the delay due to the competitive process and the transition to a new management team, staff, schedules, and systems would cause unacceptable delays in fulfilling NASA’s mission causing a considerable impact across multiple projects. Replacing these knowledgeable experts would pose an unacceptable risk or delay to critical projects. Finding and replacing these and specially trained niche engineers with unique expertise

would take a considerable amount of time and impact project schedules. An interruption and restart of tasks with a new contractor that is unfamiliar with the NASA GSFC environment and the specific requirements of the SENSE contract would greatly jeopardize the success of NASA GSFC's implementation of these critical and highly visible Agency programs.

In addition, if the current Peraton support under this contract were not extended during this period, significant technical risks would be introduced. For example, it would affect the Lunar Exploration Ground Sites (LEGS) Site 1 where the contractor will execute modifications to the "WS1" Antenna and systems at the NASA White Sands Complex (WSC) to address system obsolescence to enhance performance in support of current WS1 missions and to support future Sun Earth Lagrange missions, such as the Roman mission; as well as, the task orders providing management and engineering for the LEGS 2 and 3 sites in South Africa and Australia. Additionally, substantial duplication of costs would be expected to be incurred in procuring and phasing in an interim, bridge contractor. These duplicative costs would include the need to review contractor submitted proposal and documents, such as Organizational Conflict of Interest (OCI) Avoidance plan, Safety and Health plan, among others, for this extension period which will be completed for the follow-on award. A bridge competition would also likely result in substantial, unnecessary delays in the follow-on procurements due to limited personnel resources which would be needed to work on both procurements at the same time. Peraton is considered the only contractor that can meet NASA GSFC's needs given the short term of the extension.

Based on the above rationale, procurement of this effort on a non-competitive basis is essential to efficiently and effectively maintaining the critical work performed under the SENSE contract until the follow-on contract(s) is/are awarded.

6. FAR 6.303-2(b)(6) – A description of the efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies:

A notice to the Government Point of Entry (GPE) website (Sam.gov) was published on December 16, 2024, in accordance with FAR Subpart 5.2. This posting informed potential sources of NASA's intent to award this sole-source extension to Peraton Inc. The results of this synopsis are summarized in Section 10 below.

7. FAR 6.303-2(b)(7) – A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer's signature on this document indicates that the Contracting Officer has determined that the anticipated cost to the government will be fair and reasonable. The Contractor shall be required to submit a proposal for contract year 7 and 8 indirect and direct rates to be evaluated and negotiated by the Government. Prior to the issuance of task order, an analysis will be performed. The proposed costs will be evaluated by the Contract Resource Analyst, Contracting Officer's Representative (COR), and the Contracting Officer (CO) to determine that the skill mix, direct labor rates, direct labor hours, skill mix, other

direct costs, indirect costs, and fee(s) are fair and reasonable. This may also include support from external organizations, as needed.

8. FAR 6.303-2(b)(8) – Description of the market research conducted, and the results, or a statement of the reasons market research was not conducted (e.g., urgent, and compelling requirement):

Given the urgency of the need and the complexity of the requirement, no in-depth market research was conducted. Within this limited time frame for implementing this contract extension, NASA GSFC does not believe any alternate sources can take on full contract responsibility without risk of an unacceptable delay to critical milestones. The Government would unnecessarily incur significant additional cost if another contractor were to perform this effort. An assessment of other existing current contracts was made with the conclusion that no viable contract vehicles existed that could reasonably support ESC requirements. The requirement for SENSE continuity of operations and the need to meet critical requirements left no feasible alternative except to extend the current SENSE contract.

9. FAR 6.303-2(b)(9) – Any other facts supporting the use of other than full and open competition:

Conducting a competitive procurement for the continuation of these services would seriously impact current ongoing logistics services activities. Additionally, award to any other source for this interim period would delay NASA's GSFC vital missions. The services provided under the SENSE contract are essential for GSFC to meet its goals and objectives that directly affect mission success.

10. FAR 6.303-2(b)(10) – A listing of the sources, if any, that expressed an interest in writing in the acquisition:

A notice of NASA's intent to award this sole-source action was synopsisized on the GPE website (Sam.gov) per FAR Subpart 5.2 (See Section 6 above).

One response expressing interest was received from Voyager Space Exploration Systems- ZIN Technologies, Inc. a Statement of Capabilities (SOC) was submitted and evaluated by the NASA Technical Team.

Based on the requirements of the SENSE contract, the contractor is responsible for two of the three Space Communications and Navigation (SCaN) Program networks providing round the clock operations, maintenance and sustainment of satellite ground stations providing Telemetry, Tracking, and Commanding (TT&C) services, and to provide Network integration activities support for those two networks and Electromagnetic Spectrum Management (ESM) services to stakeholders within and external to NASA. Voyager Space Exploration Systems- ZIN Technologies SOC does not demonstrate the ability to meet the unique operations, maintenance, and sustainment capabilities essential for successful performance of the contract requirements; it did not demonstrate the necessary skills and experience to perform design, development, management and sustainment of ground-based space communications systems or show necessary communications experience to perform and manage the unique challenges of the NSN's 24x7 network operations.

11. **FAR 6.303-2(b)(11) – A statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:**

The Agency will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements. The Government is in the process of conducting follow-on competitions.

**SPACE EXPLORATION NETWORK SERVICES AND EVOLUTION (SENSE)
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SIGNATURE PAGE**

I certify that the facts presented in this justification are accurate and complete.

Jerome
Butler

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Jerome Butler
Technical Representative

I hereby certify that the above justification is complete and accurate to the best of my knowledge and belief.

SANDRA
GRELLO

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Sandra Grello
Contracting Officer